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**IN THE COURT OF THE CIVIL JUDGE SENIOR
DIVISION 'A' COURT AT MERCES, GOA**

S. C. S. No. 52/2013/A

COMMUNIDADE OF BAMBOLIM ...Plaintiff

v.

PASCAOL TRINDADE & Ors. ...Defendants

**WRITTEN SYNOPSIS ON BEHALF OF
DEFENDANTS NO. 1(a), (b) and 2.**

MAY IT PLEASE YOUR HONOUR.

The Defendants No. 1(a), 1(b) and 2 abovenamed most respectfully submit as under:

1. At the outset, the Defendants No. 1 and 2 submit that the present Written Submissions are filed by these Defendants to assist this Hon'ble Court and reserve their right to advance oral arguments. Filing of the present Written Submissions shall not be construed as a waiver of their right to advance oral arguments.
2. In support of its case, and pursuant to the settlement proposals and relief clauses added thereafter, the Plaintiff

has filed Written Arguments dated 02.07.2022, marked as Exhibit D-165. However, the Plaintiff has confined its submissions only to prayer clause 'a.1', which pertains to the settlement proposal allegedly offered by the Defendants. In view of the said settlement proposal, these Defendants had earlier filed joint Written Submissions along with Defendant No. 20.

3. However, considering the Roznama dated 04.04.2026, it is evident that there is no possibility of settlement and, therefore, the present matter is required to be decided on its merits. Hence, the present Written Submissions.
4. The pivotal points for consideration which arise in the present suit are as follows:
 - a. In the absence of a contemporaneous challenge in the present suit to the principal document/instrument, and particularly in the background of the fact that the Consent Decree dated 12.11.1998 passed in Civil Suit No. 222/1994/B continues to remain in force, the present suit seeking declaration of ownership and/or

declaration of title does not survive and/or is not maintainable. It is a matter of record that the Consent Decree dated 12.11.1998 passed in Civil Suit No. 222/1994/B has neither been set aside nor recalled and, therefore, its effect continues to bind both the Plaintiff and the Defendants. As such, the present suit is clearly barred in law.

- b. Owing to the findings qua delay and laches, the non-tenanted nature of the land and the rights of the parties, as rendered by the Hon'ble High Court of Bombay at Goa in its Judgment dated 29.03.2012, passed in Writ Petition Nos. 506/2009, 557/2009, 577/2009 and 657/2011 at Exhibit PW1/C-106, coupled with the findings in the Order dated 01.09.2011, as detailed in the Judgment dated 29.03.2012 passed in the aforesaid Writ Petitions, which findings have attained finality, the present suit is not maintainable.

- c. Owing to the peculiar facts and circumstances of the present case, wherein the survey records from the year 1982, i.e. subsequent to the passing of the Order dated 15.01.1982 by the survey authorities and the creation of Survey Nos. 93/2, 93/3 and 93/4 of Village Bambolim reflecting the name of Maria Concesao Rodrigues, the Plaintiff's claim of possession and/or ownership is barred by the law of limitation.
- d. The claim seeking to set aside the Deeds of Sale executed and registered in the year 2006, which were particularly within the knowledge of the Plaintiffs and the Gaunkars, was time-barred in the year 2013 and thus, the suit is completely barred by the law of limitation and, in particular, Article 58 of the Limitation Act. It is a matter of record that the Agreement of 1997 and the Consent Decree of 1998, were in the public domain and copies whereof were available with the Plaintiff and were within the

knowledge of the Plaintiff. In such circumstances, the claim of the Plaintiff is clearly time-barred.

- e. In the absence of necessary parties, particularly Mr. Jeronimo Manuel Monteiro, i.e. the Special Attorney, and the then President, Mr. Reinario Tadeu Luz De Souza, who, according to the Plaintiff, were the principal conspirators, yet were never impleaded as parties to the present suit, and in the wake of the Deletion dated 18.06.2021 at D-68 and Order dated 23.08.2022 at D-167, the present suit is not maintainable.
- f. The Comunidade, by seeking the relief of specific performance, has essentially admitted the title, rights and entitlement of the Defendants to the suit properties. It is settled law that when a party claims relief of specific performance of an agreement for sale or an agreement to execute a re-conveyance in a suit, and the Plaintiff seeks execution of the sale deed from the Defendant, it is implicit that the Plaintiff

accepts the title of the Defendant. Consequently, the suit seeking declaration and other reliefs is clearly not maintainable.

g. The report and testimony of PW2, Mr. Gonsalves, cannot be considered, particularly in the absence of any field survey and/or site inspection having been carried out by the expert PW2 and his report, qua identification of the property, therefore, cannot be considered credible. PW2 himself states that, in view of the mismatch between the boundary lines under the old and the new plans, and in order to have conclusive proof, a ground survey was incumbent.

h. As regards the claim of the Plaintiff seeking specific performance, it is imperative to note that Exhibit PW1/C-121, which records the Minutes of the Meeting of the Managing Committee dated 18.04.2021, reflects that the Plaintiff had approached the Hon'ble Administrative Tribunal seeking permission in terms of Article 350 of the Code of

Comunidade. It appears from the records that such permission, if any, has not been produced by the Plaintiff. There is no averment qua such permission and/or the effect of its absence. It is evident that the Managing Committee of the Plaintiff had approved the proposal subject to conditions. Therefore, there was no complete and binding agreement between the parties as alleged.

- i. Finally, on facts, the Defendants' title is traceable to a grant of 1904, followed by remission in 1938, and a proper chain of succession and registered sale deeds down to Defendant No. 1. This is supported by the revenue records, whereas the Plaintiff's own witnesses have admitted major weaknesses in their documents and a large, unexplained discrepancy in the area figures. For these reasons, the Defendants pray that the suit be dismissed with costs.

5. Without prejudice, these Defendants submit that at this juncture, it is necessary to briefly set out the case of the

Plaintiff in a nutshell, as emerging from the pleadings and the evidence led by the Plaintiff.

CASE OF THE PLAINTIFF IN NUTSHELL:

6. The Plaintiff initially claimed ownership of the suit properties. It is apparent from a reading of the plaint that the Plaintiff was aggrieved by the Consent Decree dated 12.11.1998 passed in Civil Suit No. 222/1994/B. Despite the fact that the Plaintiff has not been successful in assailing the said Consent Decree, the Plaintiff has preferred the present suit seeking, inter alia, a declaration that it is the owner of the suit properties and consequently that the three Sale Deeds dated 25.04.2006, registered under Nos. 1238, 1239 and 1240 in Book I, Volume No. 1634, dated 03.05.2006 in the Office of the Sub-Registrar of Ilhas at Panaji, Tiswadi-Goa, executed between Defendant Nos. 1, 3 and 4 in respect of the suit properties bearing Survey Nos. 93/2, 93/3 and 93/4 of Village Bambolim, are illegal, null and void.
7. From a reading of the plaint and the evidence produced by the Plaintiff, it appears to be the case of the Plaintiff that the

suit properties bearing Survey Nos. 93/2, 93/3 and 93/4 of Village Bambolim originally formed part of the Comunidade property known as "SAVELI GALI", which, according to the Plaintiff, corresponds to the properties described in the old Tombo records.

8. The Plaintiff contends that, despite the survey records and subsequent conveyances standing in the names of the Defendants or their predecessors, ownership of the suit properties has always vested in the Plaintiff-Comunidade and that the Defendants have no lawful right, title or interest therein.
9. It is the Plaintiff's further case that the mutation of names in the survey records, the Sale Deeds executed by the predecessors of Defendant Nos. 1 and 2, and all subsequent transactions and permissions obtained in respect of Survey Nos. 93/2, 93/3 and 93/4 are illegal, null and void, as they pertain to property allegedly belonging to the Plaintiff.

10. On this basis, the Plaintiff seeks a declaration of its ownership over the suit properties, consequential reliefs against the Defendants and other ancillary reliefs as prayed for in the plaint.

RELIEFS PRAYED BY THE PLAINTIFF:

11. The Defendants submit that the reliefs sought by the Plaintiff in the present suit are as follows, which are reproduced hereinbelow for ready reference:

"a. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the suit property admeasuring 97.590 sq mts is part of the property namely under survey no. 93/2 of village Bambolim is part of the property of Lote no. 43 'B' called "OROS" and Lote no.47 "Saveli Gali" and the property under survey no. 93/3 and 93/4 of village Bambolim is part of the property of the original property of the plaintiff under Lote No. 49 called "Saveli Gali" and other property of the plaintiff in village Bambolim, Tiswadi

Taluka of State of Goa and the plaintiff is owner of the said property.

- ai. That this Hon'ble Court may be pleased to pass a Judgment and Decree directing the defendant no.1 and 2 and 3 to hand over the vacant possession of the plot of 5000 sq. mts. (Five Thousand square meters) in suit property under survey no. 93/2 of village Bambolim to the plaintiff along with an amount of Rs. 10,00,00,000/- (Rupees Ten Crores Only) as well as to construct sport arena with structures namely stage with changing rooms, two separate wash rooms for gents and ladies, basket ball court, badminton court and volleyball court at their own cost within a period of 15 months from the date of approval and license from the Town and Country planning department and Village Panchayat Bambolim.*
- b. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the three sale deeds dt 25/4/2006 registered under no. 1238, 1239 and 1240 Book I Volume No. 1634 dated 03/05/2006*

in the Office of Sub Registrar of Ilhas at Panaji, Tiswadi-Goa executed between the defendant no. 1, 3 and 4 in respect of the suit property under survey no. 93/2, 93/3 and 93/4 of village Bambolim are illegal, null and void ab initio and the same may be ordered to be cancelled.

c. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the inclusion of the name of the defendant no. 1 in the Form I & XIV of the property under survey no. 93/2, 93/3, 93/4 of village Bambolim is illegal and the name of the defendant no.1 may be ordered to be deleted and the plaintiff's name may be ordered to be included in the said survey records as owner/occupants of the suit property and defendant no. 1 to 5 have no right in the suit property.

d. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that Decree in the compromise decree dated 25/1/2007 in Regular Civil Suit No. 6/2007/C before Civil Judge Senior Division

at Panaji is without jurisdiction, illegal and void ab initio and is not binding on the plaintiff.

- e. That this Hon'ble Court may be pleased to pass a Judgment and Decree directing the defendant no.1 and 2 to hand over the vacant possession of the suit property under survey no. 93/2, 93/3, 93/4 of village Bambolim admeasuring 97,500 sq mts to the plaintiff.*
- f. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the certificate dt. 18/3/1904 allegedly issued by Clerk of Comunidade and relied upon by defendant no. 1 to 4 is not a title ownership document of the suit property Saveli Gali and Oros and does not confer any right of ownership in favour of defendant no. 1 to 4 or any person claiming through them including the predecessors of defendant no.3 late Alexander Rodrigues, Maria Concesao Rodrigues.*
- g. That this Hon'ble Court may be pleased to pass a judgment and decree declaring that the certificate 18/3/1904 allegedly issued by Clerk of Comunidade*

and relied upon by defendant no. 1 to 5 is not a grant of the suit property Oros and Saveli Galli and does not confer any right on the defendant no. 1 to 4 or their predecessors in the suit property.

- h. That this Hon'ble Court may be pleased to pass a judgment and decree declaring that the property under survey no. 93/2, 3, 4 of village Bambolim is part of the plaintiff property called Saveli Gali and Oros described in the plaint and the same was never granted or sold to late Alexander Rodrigues, Maria Concesao Rodrigues or any other person.*
- i. That this Hon'ble Court may be pleased to pass a Judgment and Decree of permanent injunction restraining the Defendants no.1 and 2, their agents servants or any other person claiming through them from starting any development and construction activities in the suit property, changing the nature of suit property and alienating, selling, transferring, the suit property under survey no. 93/2, 3, 4 of village Bambolim in any manner.*

- i.1. This Hon'ble Court may be pleased to declare that the sale deed dated 14/7/2014 along with agreement dt 12/11/2012 executed by defendant no. 1 and 2 in favor of defendant no. 20 is null and void and the same may be ordered to be cancelled.*
- i.2. This Hon'ble Court may be pleased to pass judgment and decree of permanent injunction restraining the Defendants no. 20, their agents, servants or any other person acting through them from starting any development and construction activities or, changing the nature of suit property and alienating, transferring the suit property under survey no. 93/2 of village Bambolim in any manner.*
- i.3. That pending the hearing and final disposal of the suit this Hon'ble Court may be pleased to pass an order of temporary injunction restraining the Defendants no. 20, their agents, servants or any other person acting through them from starting any development and construction activities or, changing the nature of suit property and alienating,*

transferring the suit property under survey no. 93/2 of village Bambolim in any manner.

- j. That pending the hearing and final disposal of the suit this Hon'ble Court may be pleased to pass a Judgment and Decree of permanent injunction restraining the Defendants no.1 and 2 their agents servants or any other person from starting any development and construction activities or, changing the nature of suit property and alienating, transferring the suit property under survey no. 93/2, 3, 4 of village Bambolim in any manner.*
- k. For add interim relief in terms of prayer (j),*
- l. Any other relief this honorable court deem fit and proper."*

ARGUMENTS OF THE DEFENDANTS:

12. The Defendants submit that the reliefs sought by the Plaintiff are also mutually inconsistent and contrary to its own pleaded case. On one hand, the Plaintiff seeks a declaration that it is the owner of the entire suit properties

and challenges the title of the Defendants. On the other hand, by additional prayer clause ai.) added by way of amendment, the Plaintiff seeks a Judgment and Decree directing the Defendants to hand over possession of only a plot admeasuring 5,000 sq. mts. forming part of Survey No. 93/2.

13. It is pertinent to note that the relief sought under prayer clause 'ai.' is not merely an additional relief, but is in fact contrary to and changes the entire stand of the Plaintiff.



Despite the nature of such amendment. The said relief is wholly inconsistent with the Plaintiff's own case and demonstrates the absence of a clear and definite case for the relief sought. Such contradictory reliefs cannot be granted and the present suit, founded upon such inconsistent pleadings and reliefs, is liable to be dismissed on this ground alone.

14. The Defendants further submit that the Hon'ble Supreme Court of India, in *Madhavan (Dead) Through LRs. & Anr. v. Kanakavally*, Civil Appeal No(s). 1392 of 2011, has held

that the pleadings and stand taken by a party in a suit have to be considered as a whole and that a party cannot seek a relief on a basis contrary to its own pleadings and conduct, viz.,

"10... When a prayer for specific performance of agreement for sale or an agreement to execute a re-conveyance is made in a suit and when the plaintiff seeks execution of the sale deed from the defendant, it is implicit that the plaintiff has to accept the title of the defendant. We have, therefore, carefully perused the plaint as originally filed. While carrying out the amendment, none of the paragraphs in the plaint were deleted. Only certain averments were added in the plaint for incorporating averments regarding readiness and willingness. As stated earlier, there is a sale deed dated 03.10.1988 executed by the first appellant in favour of the second appellant and the respondent....."

14. The Trial Court completely ignored the effect of the averments made in the plaint and the statements made in the evidence of the appellants and, therefore, we have no manner of doubt that the exercise of discretion under Section 20 of the 1963 Act by the Trial Court in favour of the appellants was perverse and illegal..."

15. Being so the settled position of law, the Plaintiff cannot be permitted to approbate and reprobate at the same time. On one hand, the Plaintiff seeks a declaration that it is the owner of Survey Nos. 93/2, 93/3 and 93/4 and disputes the title of these Defendants; while on the other hand, by relying upon the settlement proposal dated 20.11.2020, the Plaintiff seeks a decree for 5,000 sq. mts. from Defendant Nos. 1, 2 and 20, thereby proceeding on the basis that the said Defendants have ownership rights in the suit properties.

16. The Plaintiff cannot, in the same proceedings, claim ownership over the entire suit properties and simultaneously

seek relief from the very persons whose ownership it disputes.

17. Further, even assuming, for the sake of argument, that the Plaintiff is entitled to seek such relief, the same cannot be granted in the manner sought, as it would effectively amount to transfer of the ownership rights in the suit properties without any consideration and It is evident that the Managing Committee of the Plaintiff clearly approved the proposal subject conditions. Therefore, it is not a complete and binding agreement between the parties as alleged.
18. Without prejudice to the above, Defendant Nos. 1(a), 1(b) and 2 submit that their Written Statement setting out the preliminary objections to the maintainability of the present suit, as also their defence and flow of title, is already on record.
19. At the outset, these Defendants had raised various preliminary objections to the maintainability of the present suit. The foremost objection was that the present suit was

barred by the law of limitation. In respect thereof, these Defendants had filed an Application for Rejection of Plaint dated 21.01.2014. Though the said Application came to be dismissed, the issue of limitation was specifically kept open to be decided on merits.

20. While dismissing the said Application at the pre-trial stage, this Hon'ble Court was pleased to observe that the issue of fraud and the question as to whether the knowledge of the survey records operated as a bar involved mixed questions of law and facts, requiring the same to be examined upon a full trial.
21. Though the Plaintiff has averred that the cause of action for filing the present suit arose on 29.03.2012, allegedly when the Hon'ble High Court observed that the parties should approach the appropriate Court, the Plaintiff has sought to interpret the said observation in a manner favourable to its own case so as to overcome the bar of limitation. Such interpretation of the said judgment is wholly misconceived

and cannot give rise to a fresh cause of action or extend the period of limitation.

22. The Defendants submit that the Judgment and Order dated 29.03.2012 passed by the Hon'ble High Court of Bombay at Goa in Writ Petition No. 506/2009 has to be read in its proper perspective. The said Judgment nowhere grants any liberty or creates any fresh cause of action for filing the present suit. The Hon'ble High Court in its Judgment and Order dated 29.03.2012 has observed that '*The Petitioners cannot rely upon the above decision unless they are successful in proving their allegations as set out in the petition by approaching competent forums or courts. The inquiry which they desire cannot be undertaken in our limited jurisdiction.*'

23. The aforesaid observation, in no manner, can be construed as creating a fresh cause of action in favour of the Plaintiff. Further, the Hon'ble High Court has neither granted any relaxation, extension or waiver of the period of limitation for instituting the present suit. The Plaintiff therefore cannot

rely upon the said Judgment and Order dated 29.03.2012 to overcome the bar of limitation.

24. To the contrary, the observations made from 18th line of page No. 21 by the Hon'ble High Court in the said judgment and order go to give a finding that the issues involved therein were already barred by limitation, which are as under;

“...The said judgments and decrees were obtained by fraud and collusion by respondents no.3 to 21 and the petitioners came to know about this fraud when such respondents filed their replies in case No. ILL/CNV/19/2009- 881 before the Deputy Collector and S.D.O., Panaji who was conducting an inquiry pursuant to the directions given by Hon'ble High Court in Writ Petition No.102/2009.”

Further, on 5th line at page No. 24, recognizes that the petitioners therein had alleged fraud and filed writ petition instead of filing appropriate proceeding,

“On 03/07/2009, the Administrator of Comunidades passed an order stating that although there is fraud being played by the builders to grab the property of the Comunidade of Bambolim, the Administrator is unable to take action under Article 371 of the Code of Comunidade, thereby protecting respondents no. 3 to 8 of the Writ Petition No. 557/2009 from legal consequences. Aggrieved by the inaction on the part of the Administrator of Comunidades, the petitioners filed the said Writ Petition No.557/2009.

The Hon'ble High Court further observed at page 25, that,

“11. Writ Petition No.102/2009 was disposed of with a direction to the Administrator and to the Collector to conduct enquiries regarding alleged illegal, unauthorised constructions carried out by private respondents on the agricultural land and without compliance of any statutory provisions. The Deputy Collector and S.D.O. at Panaji started enquiry under Case No. ILL/CNV/TIS/19/2009 and in the

course of enquiry, the Mamlatdar under cross-examination stated that the declarations of tenancy made in Case No.CAJ/ARC/PRC/18/71 dated 20/12/1971 and Case No.CAJ/ARC/PRC/10/71 and 11/71 dated 10/12/1971 are not traceable and that the xerox copies of the same produced on record are bogus.

Relying upon the affidavit in reply filed by the Plaintiff's attorney in the said writ petition, Hon'ble High Court observed the following at page 27;

"13. The Attorney of the Comunidade, namely Felix Monteiro has filed Affidavit-in-reply in the Writ Petitions No. 506/2009 and 577/2009. He has stated as under: The Comunidade of Bambolim is the owner of the properties surveyed under no. 89/3, 90/1, 93/2, 93/3 and 93/4 of village Bambolim. On 1/12/1994, the Comunidade filed the Special Suit NO. 222/1994/A, for declaration of ownership, against Maximo Margulhao, in respect of survey no. 89/3. On 19/11/1998, compromise terms came to

be filed in the said suit, without approval/resolution of the General Body and without approval of the Administrative Tribunal, as required under the Code of Comunidades. By the said compromise terms, the Comunidade relinquished their claim to the properties surveyed under nos. 89/3, 90/1, 93/2, 93/3 and 93/4 admeasuring about 1,35,000 square metres, in favour of the legal representative of deceased Maximo Mergulhao, namely Mrs. Dionisia, for consideration of 5 plots of developed land to be allotted to the Comunidade and 40 plots to be allotted to the Gaunkars of the Comunidade of Bambolim. The Special Attorney of the Comunidade had conspired with Mrs. Dionisia Dias e Mergulhao and Raghurai Tamba to compromise the said suit and thus to cheat the Comunidade.”

on 14th line at page 42,

“In the circumstances above, there is serious dispute about the original title of the said properties.

It is well settled that relief under Article 226 of the Constitution is not available to decide the disputes of civil nature. There is alternative remedy for the above by way of civil suit."

And thereunder, from last line of same page 42, the Hon'ble High Court has observed the developments carried out in the suit properties and creation of third party rights, non-joinder of necessary parties and limitation, viz.,

"24. Admittedly, subsequently, by sale deeds, Shri Pascoal Trinidade and M/s. Raghurai Tamba have purchased the said properties and they are bonafide owners thereof. In fact, it is seen that the said properties have been already developed and third party rights have been created in various plots. The conversion sanads obtained in respect of the said properties have been acted upon long back and are exhausted. Roads, drainages etc., were constructed long back. Approval of the sub-division of plots by the Town planner and final N.O.C. for the said sub-division has been already issued long back. The

finally approved sub-divided plots have been sold to various persons, who are already in possession of those plots. Mutations in survey records have been carried out. Constructions have already come up in some of those plots. The owners of the said plots are not made parties to these writ petitions. It is well settled that when other interests have come into being and the persons having these interests are not parties, the extra-ordinary jurisdiction under Article 226 of the Constitution should not be exercised.

25. The orders of the Mamlatdar pertaining to tenancy are dated 20/12/1971 and 10/12/1971. The judgment and decrees of the Civil Courts are dated 06/08/1986 and 20/11/1998. The first Writ Petition i. e. bearing No. 506/2009 has been filed on 11/08/2009. Other Writ Petitions are all filed after that. There is, therefore, gross inordinate delay and laches which have not been explained at all by the petitioners.

27. It is seen that as per the order dated 18/2/2009, of this Court in Writ Petition No.102/2009, the learned Deputy Collector and S. D. O., North Goa, had conducted the full fledged inquiry in case No. III/CNV/TIS/19/2009, into the contention of the petitioners that the properties bearing survey nos. 89/3, 90/1, 93/2, 93/3, and 93/4 belong to the Comunidade of Bambolim and that these properties are tenanted lands and in contravention of the provisions of the Agricultural Tenancy Act, Goa Land use (Regulation), Act and Goa Land (Prohibition on Construction) Act, the constructions are being carried out in these properties. By way of detailed Judgment and Order dated 1st August, 2011, the learned Deputy Collector has concluded that property under survey no. 90/1 of village Bambolim is agricultural tenanted land and hence no conversion is permissible in respect of this land. He has held that the properties bearing

Survey Nos. 89/3, 93/2, 93/3 and 93/4 were not tenanted lands. It is pertinent to note that in Special Civil Suit No.222/1994/B filed by the Comunidade of Bambolim against Mergulhao since deceased through L.R. Mrs. Dionisia Dias e Mergulhao for a declaration that the property bearing Survey No.89/3 is part of the property named 'OROS' belonging to the Comunidade. Consent terms were filed and a consent decree dated 21/11/1998 was passed under which the Comunidade agreed to take 45 plots in Survey Nos. 93/2, 93/3 and 93/4. If the said properties exclusively belonged to the Comunidade, then, there was no need for settling the matters by taking only 45 plots from that property. It is difficult to believe that the properties bearing Survey Nos. 89/3, 93/2, 93/3 and 93/4 ever belonged to the Comunidade of Bambolim. The tenancy of Raju Ishwar Gauns is found to be confined to survey no. 90/1. M/s Raghurai Tamba has purchased the land from survey no. 89/3 which

was originally belonging to Maximo Mergulhao whereas Pascoal Trindade has purchased the property under survey nos. 93/2, 93/3 and 93/4. The sale deeds have not been challenged. Admittedly, no development activities have been carried out in the property bearing survey no. 90/1. Be that as it may, questions, if any, are raised about all the above, then those would be really disputed questions and cannot be gone into in writ jurisdiction.

25. The Defendants submit that the Hon'ble Supreme Court in **Arifa & Ors. v. Abhiman Apartments Co Operative Housing Society Limited & Ors.** 2025 10 SCC 700., has held that;

'11. We perfectly agree with the findings in the impugned judgment regarding limitation and res judicata and cannot but observe that the liberty granted by the High Court in the second appeal was akin to flogging a dead horse; which cannot give a fresh lease of life either the cause of cation; to save

limitation or the grounds on which the declaration and consequential relief has been prayed in the present suit; which grounds were already adjudicated in the earlier suit and found against the plaintiff by three courts.'

26. Article 58 of the Schedule to the Limitation Act, 1963 provides a period of three years for a suit to obtain any declaration, commencing from the date when the right to sue first accrues. In the present case no exemption from such limitation can be either granted and/or even claimed.
27. In view of Article 58 of the Limitation Act, 1963, the date 29.03.2012 cannot be construed as the date on which the right to sue first accrued to the Plaintiff. The right to sue, if any, had accrued to the Plaintiff much prior thereto, as would be evident from the facts and circumstances set out hereinbelow.
28. The Defendants submit that the question of limitation cannot be determined merely by accepting the form in

which the Plaintiff has chosen to frame its cause of action. The Court is required to undertake a meaningful and not merely formal reading of the plaint and ascertain the substance of the claim. The Plaintiff cannot, by clever drafting, create an illusion of a fresh cause of action so as to revive a claim which had already become barred by limitation. In **Uma Devi and Others v. Anand Kumar and Others**, 2025 SCC OnLine SC 703, the Hon'ble Supreme Court held that a registered document constitutes notice and that the plaintiffs could not "reignite their rights after sleeping on them for 45 years".

29. The Hon'ble Supreme Court further relied upon **Shri Mukund Bhavan Trust v. Shrimant Chhatrapati Udayan Raje Pratapsinh Maharaj Bhonsle**, 2024 SCC OnLine SC 3844, and observed that although limitation may ordinarily involve a mixed question of law and fact, where, upon a meaningful reading of the plaint, the vices of clever drafting creating an illusion of a cause of action can

be dissected and the suit is found to be hopelessly barred, the plaint is liable to be rejected under Order VII Rule 11.

30. It is submitted that the Plaintiff cannot be permitted to circumvent the law of limitation by merely giving a different label to an otherwise stale claim or by introducing a subsequent event as the alleged starting point of limitation. The Court is required to ascertain the real and substantive cause of action disclosed by the plaint. In **Ramisetty Venkatanna and Another v. Nasyam Jamal Saheb and Others, 2023 SCC OnLine SC 521**, the Hon'ble Supreme Court reiterated that the plaint must be read meaningfully and that a plaintiff cannot, by clever drafting, create an illusion of a cause of action so as to circumvent the law of limitation. The Court further recognised that where the real grievance relates to an earlier transaction or instrument, the plaintiff cannot avoid the bar of limitation by omitting a direct challenge thereto and attempting to project a subsequent event as giving rise to a fresh cause of action.

31. Without prejudice to one another and in the alternative, the Defendants submit that on any of the following independent dates, each of which is borne out by the Plaintiff's own pleadings, documents and admissions in cross-examination, the cause of action, if any, had accrued and the period of limitation had commenced to run, much prior to 29.03.2012 as pleaded by the Plaintiff.

32. The Plaintiff Witness 1, in his deposition, made crucial statements at page 26, pertaining to maintaining of records by the Plaintiff organisation, including following;

"It is true that copy of records of any proceeding filed by or against the comunidade are always available with the Escrivao. It is true that the Escrivao has maintained the said records. It is true that correspondence made with the administrator of Comunidade seeking permission to file a suit is always done through Escrivao. It is true that the post of Escrivao is not an elected post and he was appointed by the collector. It is true that a Escrivao

under code of comunidade is answerable to the administrator of comunidade. It is true that the comunidade of Bambolim is good at maintaining their records. I say that any suit filed by the comunidade a record is maintained by the comunidade.

Q: Would be correct to say that records of all proceedings pending in respect of the suit properties Viz CS/66/2009, SCS/52/2013, SCS222/1994, CMA 6/2010 etc were available with the Escrivao at all times?

Ans. I say that any suits that are filed by the Comunidade are available with the Escrivao. I voluntarily say when I filed present suit I gave copy along with a covering letter to the Escrivao so that he can maintain it in his Archives."

"It is true if a component is interested in knowing nature of a suit filed by the comunidade he can find out the same from the records maintained by the Escrivao."

The aforesaid admissions clearly establish that the records of the proceedings instituted by or against the Comunidade were maintained in its archives and were available with the Escrivao. The Plaintiff, therefore, cannot now contend that it was unaware of the earlier proceedings, including the Consent Terms and the Consent Decree passed therein. It is further pertinent to note that the records of the Enquiry Proceedings bearing Case No. LS/CS/ENQ/II/I/80, which is at exhibit PW1/98 Colly, reveals that the title predecessor of these Defendants i.e., Maximo Mergulhao participated in the said proceedings, which proceedings were initiated by the Dean of the Goa Medical College after acquisition wherein the Plaintiff was also a party, said Maximo Mergulhao had set out ownership to the properties then surveyed under Survey No. 89/1(part) and 93/1 (part) (since no subdivision were formed), which fact is also admitted by the Plaintiff witness at page 25 of his cross examination as;

***'It is true that pursuant to the Order dated 15/1/1982
the non-acquired portion came to be bifurcated as***

Survey No. 93/2, 93/3 and 93/4 of village Bambolim'.

33. The said enquiry culminated in the Order dated 15.01.1982, pursuant to which the property surveyed under Survey No. 93/1 came to be divided into various subdivisions, including the suit properties bearing Survey Nos. 93/2, 93/3 and 93/4. The said sub-divisions thereafter came to be reflected in the name of the predecessor-in-title of these Defendants i.e. Maximo Mergulhao.
34. The said fact is proved by the document at exhibit DW2/C-162, which clearly records suit properties bearing No. 93/2, 93/3 & 93/4 in favour of Maximo Mergulhao with the remark '*As per order LS/CS/ENQ/II/1/80 dated 15.01.82*'.
35. The PW1 witness has admitted the said fact in his cross examination at page No. 25 stating;

'It is true that the after the Order dated 15/1/1982 the bifurcated survey number 93/2, 93/3 and 93/4 started reflecting the name of Maximo Mergulha in

occupants columns of form I & XIV. and has further admitted that on the same page that *'it is true that the said Order dated 15/1/1982 forms the part of records of the Comunidade'*.

36. Thus, if the Plaintiff had any grievance regarding the ownership of the suit properties, the right to seek a declaration in respect thereof had accrued, at the latest, upon passing of the Order dated 15.01.1982, and the cause of action cannot be said to have first accrued on 29.03.2012.
37. The aforesaid principle also stands squarely supported by the Judgment of the Hon'ble High Court of Bombay at Goa in **Avinash Tanu Govekar and Others v. Anjani A. Govekar and Others**, 2024 SCC OnLine Bom 624. The Hon'ble Court emphasised that the plaint must contain a specific assertion as to when and how there was a clear and unequivocal threat to the alleged right, and that a subsequent obtaining of certified copies of revenue records cannot, by itself, be treated as the accrual of a fresh cause of action. The Court held that a meaningful reading of the plaint is

necessary to determine whether the cause of action pleaded is the actual cause of action or merely an illusory one created to overcome the bar of limitation.

38. The same principle has been reiterated by the Hon'ble High Court of Bombay at Goa in **Anil Bhanudas Bhamaikar and Another v. Gurudas Bhamaikar, 2024 SCC OnLine Bom 1137**, wherein the Court held that a meaningful reading of the plaint is required to determine whether the cause of action pleaded therein is the actual cause of action or merely an illusory cause of action pleaded to overcome the bar of limitation. The Hon'ble Court further held that the mere assertion in the plaint as to the date on which the cause of action allegedly arose cannot be mechanically accepted where the pleadings and surrounding circumstances disclose that the alleged right had arisen much earlier.
39. In **Raia Rudraji Sinai Salelicar and Others v. Laxmibai Kasturchand Nadkarni and Others, 2023 SCC OnLine Bom 1601**, the Hon'ble High Court of Bombay at Goa reiterated that there can be no right to sue unless there is an

actual right asserted and an infringement thereof, or at least a clear and unequivocal threat to infringe such right. The Court further held that where the plaint itself does not disclose when the right to sue accrued, and the cause of action pleaded is merely illusory, the same cannot be permitted to defeat the bar of limitation.

40. Further, when the Plaintiff instituted Special Civil Suit No. 222/1994/B, the Plaintiff, through its then Managing Committee, including the then Special Attorney Mr. Jeronimo Manuel Monteiro and the then President Mr. Reinario Tadeu Luz De Souza, was fully aware of the said proceedings and the settlement arrived therein. The Plaintiffs in the said Consent Terms at **Para D, page 5**, has declared that;

“D) The Plaintiffs hereby declare that they have no dispute or claim as against the owners of Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi and shall make a letter to that effect addressed to the Village

***Panchayat of Curca, Bambolim & Talaulim in
Tiswadi Taluka."***

The Consent Terms thereby acknowledged **Maximo Mergulhao and Dionisia Dias e Mergulhao** as the owners of the suit properties, including other properties mentioned therein.

41. Thus, the Plaintiff was fully aware of the contents of the Consent Terms, including the acknowledgment of the ownership of Maximo Mergulhao and Dionisia Dias e Mergulhao, and the settlement arrived at therein.
42. The conduct of the Plaintiff further not only reveals that the claim is barred by limitation, but also attracts the doctrine of estoppel by conduct.
43. The Agreement dated 10.12.1997 (Exhibit PW1/C-126), to which the Plaintiff itself was a confirming party, unequivocally records and acknowledges that Shri Maximo Mergulhao and his wife were the owners in possession of, inter alia, Survey Nos. 93/2, 93/3 and 93/4 and had agreed

to transfer the same in favour of M/s. Raghurai Tamba. More importantly, the Plaintiff agreed that upon allotment of 40 plots, it would withdraw Special Civil Suit No. 222/1994/B and further agreed that it would have no claim, right or objection in respect of the ownership or development of Survey Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of Village Bambolim.

44. Having consciously entered into such an arrangement and expressly acknowledged the ownership and development rights of the predecessors-in-title of Defendant Nos. 1 and 2, the Plaintiff cannot now be permitted to take a completely inconsistent stand by claiming ownership over the very same properties. A party cannot be permitted to approbate and reprobate in the same breath. Having represented that it had no claim, right or objection to the ownership and development of the suit properties and having acted upon such representation by entering into the said arrangement, the Plaintiff is estopped from now asserting a contrary claim to the prejudice of the Defendants, who trace their title

through the very transactions recognised and acknowledged by the Plaintiff.

45. The Plaintiff's conduct also demonstrates a conscious relinquishment, waiver and abandonment of its alleged claim over the suit properties. Even assuming, without admitting, that the Plaintiff had any subsisting claim, the same stood consciously relinquished by virtue of the terms recorded in the Agreement dated 10.12.1997. Such conduct is wholly inconsistent with the present stand adopted in the suit and renders the Plaintiff's claim inequitable and unsustainable.

46. The Defendants further submit that the said Agreement dated 10.12.1997 has not been challenged by the Plaintiff and continues to remain valid and binding. In the absence of the said Agreement being set aside or declared invalid, the Plaintiff cannot seek any relief contrary to the terms thereof, and the reliefs sought in the present suit cannot be granted.

47. The aforesaid conduct also assumes significance while considering the question of limitation. The Agreement dated 10.12.1997 clearly records and proves that the Plaintiff had knowledge of the ownership asserted by Maximo Mergulhao, the proposed transfer in favour of M/s. Raghurai Tamba and the development of Survey Nos. 93/2, 93/3 and 93/4. Having expressly acknowledged the same and agreed not to raise any claim or objection thereto, the Plaintiff cannot now contend that the cause of action first arose subsequently on 29.03.2012. The present suit, instituted after such acknowledgment and prolonged inaction, is therefore barred by limitation.

48. Further, pursuant to the Agreement dated 10.12.1997 (Exhibit PW1/C-126), the Plaintiff executed the Consent Terms dated 19.11.1998 in Special Civil Suit No. 222/1994/B, which culminated in a Consent Decree passed by the Ld. Civil Judge, Senior Division, 'B' Court, Panaji. The said Consent Terms were voluntarily executed by the Plaintiff after acknowledging the rights of the parties therein

and agreeing to the terms and conditions governing the suit properties.

49. During his cross-examination, PW1 was specifically asked, *"Did the Comunidade of Bambolim not have a copy of the records of SCS No. 222/1994?"* In response, PW1 admitted that *"The Comunidade would have had the said record but the same was with the Special Attorney."*

The said admission unequivocally establishes that records of the S. C. S. No. 222/1994/B, including the consent terms and decree, passed therein, were within the knowledge and possession of the Plaintiff through its special Attorney. Had the Plaintiff genuinely considered itself to be prejudicially affected by the said Consent Decree, it would have challenged the same within a reasonable time. Instead, the Plaintiff remained silent for several years and acquiesced in the Consent Terms and the decree passed thereon.

50. It is further the case of the Plaintiff, as pleaded in paragraph 46 of the plaint, that upon receiving representations from its

components/Gaonkars to stop the development allegedly being carried out in the Plaintiff's property, it applied for copies of the relevant documents from the Village Panchayat and received the same on 02.01.2009. Even assuming, without admitting, that the said date constitutes the first knowledge of the Plaintiff regarding the alleged cause of action, the present suit, instituted thereafter, is still hopelessly barred by the law of limitation.

51. It is pertinent to note that the Plaintiff has not produced on record the said communication received by it allegedly on 02.01.2009, and adverse inference of cause of action has to be inferred.
52. Even otherwise, a perusal of the page 3 of Order dated 03.07.2009 passed by the Ld. Administrator of Comunidades, in proceedings initiated pursuant to the directions of the Hon'ble High Court of Bombay at Goa in Writ Petition No. 102/2009 vide order dated 18.02.2009, clearly reveals that the Plaintiff had already been put to notice of the Sale Deeds dated 25.04.2006 executed in

favour of Defendant Nos. 1 and 2. The said Sale Deeds formed part of the record in Writ Petition No. 102/2009 as annexures, wherein Plaintiff was also a party, thereby establishing that the Plaintiff had complete knowledge of the title deeds of Defendant Nos. 1 and 2 at least from the said proceedings.

53. In the case of *Suraj Lamp and Industries Pvt. Ltd. V/s. State of Harayana and Another* reported at 2012 1 SCC 656, the Hon'ble Apex Court has observed thus:-

"15. In the earlier order dated 15-5-2009 [(2009) 7 SCC 363 : (2009) 3 SCC (Civ) 126] , the objects and benefits of registration were explained and we extract them for ready reference: (SCC p. 367, paras 15-18)

"15. The Registration Act, 1908 was enacted with the intention of providing orderliness, discipline and public notice in regard to transactions relating to immovable property and protection from fraud and

forgery of documents of transfer. This is achieved by requiring compulsory registration of certain types of documents and providing for consequences of non-registration.

16. Section 17 of the Registration Act clearly provides that any document (other than testamentary instruments) which purports or operates to create, declare, assign, limit or extinguish whether in present or in future 'any right, title or interest' whether vested or contingent of the value of Rs 100 and upwards to or in immovable property.

17. Section 49 of the said Act provides that no document required by Section 17 to be registered shall, affect any immovable property comprised therein or received as evidence of any transaction affected such property, unless it has been registered. Registration of a document gives notice to the

world that such a document has been executed.

18. Registration provides safety and security to transactions relating to immovable property, even if the document is lost or destroyed. It gives publicity and public exposure to documents thereby preventing forgeries and frauds in regard to transactions and execution of documents. Registration provides information to people who may deal with a property, as to the nature and extent of the rights which persons may have, affecting that property. In other words, it enables people to find out whether any particular property with which they are concerned, has been subjected to any legal obligation or liability and who is or are the person(s) presently having right, title, and interest in the property. It gives solemnity of form and perpetuate documents which are of legal

importance or relevance by recording them, where people may see the record and enquire and ascertain what the particulars are and as far as land is concerned what obligations exist with regard to them. It ensures that every person dealing with immovable property can rely with confidence upon the statements contained in the registers (maintained under the said Act) as a full and complete account of all transactions by which the title to the property may be affected and secure extracts/copies duly certified.”

Registration of documents makes the process of verification and certification of title easier and simpler. It reduces disputes and litigations to a large extent.”

54. The Apex Court further in the case of *Uma Devi v. Anand Kumar*, (2025) 5 SCC 198, at page 204, held that,

“14. Applying this settled principle of law, it can safely be assumed that the predecessors of the

plaintiffs had notice of the registered sale deeds (executed in 1978), flowing from the partition that took place way back in 1968, by virtue of them being registered documents. In the lifetime of Mangalamma, these sale deeds have not been challenged, neither has partition been sought. Thus, the suit (filed in the year 2023) of the plaintiffs was prima facie barred by law. The plaintiffs cannot reignite their rights after sleeping on them for 45 years."

Considering the above settled law, the period of limitation for challenging the Deed of Sales in favour of these Defendants, started on its registration, i.e., 02.05.2006, and not 20.03.2012, as alleged.

55. The Plaintiff cannot now be permitted to resile from its own conduct and seek to disregard the binding effect of the Consent Decree. Though the Plaintiff has pleaded that it has instituted separate proceedings, being C.M.A. No. 6/2010/B, seeking to set aside the Consent Decree, the said

proceedings, as a matter of judicial records, are still pending and no order setting aside, staying or suspending the operation of the Consent Decree has been passed.

56. Consequently, the Consent Terms dated 19.11.1998 and the Consent Decree passed in Special Civil Suit No. 222/1994/B continue to remain valid, subsisting and binding upon the parties. In the absence of the said decree being set aside by a competent Court, the Plaintiff cannot be permitted to disregard its binding effect and prosecute the present suit on a premise wholly inconsistent with its own solemn undertakings recorded therein.

57. The PW1 witness has also made material admissions during his cross-examination which completely belie the case pleaded in the plaint. PW1 has categorically stated in his cross examination at page 26 that,

"It is true that even in the year 2009 the Comunidade had not made any claim or filed any Civil Suit in respect of the suit properties."

The witness has further admitted on the same page,

"It is true that in Civil Suit No. 66/2009 the Comunidade of Bambolim was a defendant. I voluntarily say that the Comunidade was later transposed as a Co-Plaintiff."

PW1 has further clarified that

"I say that this transposition happened in the year October 2014."

58. The aforesaid admissions establish that proceedings concerning the very same suit properties were already pending in Civil Suit No. 66/2009 and that the Comunidade of Bambolim was a party thereto. The said fact assumes significance when considered along with the Plaintiff's own pleaded case and the other proceedings concerning the suit properties referred to hereinabove.
59. In such circumstances, the Plaintiff cannot now be permitted to contend that the cause of action for the present suit first arose on 29.03.2012, as pleaded in the plaint. The Plaintiff's own evidence and the documents on record demonstrate that

the disputes concerning the suit properties had arisen and were the subject matter of proceedings much prior thereto.

60. The aforesaid chain of events unequivocally demonstrates that the cause of action pleaded by the Plaintiff is neither the real nor the first cause of action for instituting the present suit. The Plaintiff was throughout aware of the revenue proceedings culminating in the Order dated 15.01.1982, was itself a confirming party to the Agreement dated 10.12.1997, voluntarily executed the Consent Terms dated 19.11.1998 and remained bound by the Consent Decree dated 21.11.1998. The Plaintiff has also admitted to the existence and availability of the records pertaining to the said proceedings.

61. The Plaintiff cannot be permitted to convert a stale and long-settled dispute into a fresh cause of action merely by placing reliance upon the Judgment dated 29.03.2012. The said Judgment did not create any new right in favour of the Plaintiff, did not set aside the earlier transactions, did not declare the Plaintiff to be the owner of the suit properties

and did not extend or suspend the period of limitation. At the highest, it left the Plaintiff to pursue such remedy as may have otherwise been available in law. The right to sue, however, must be traced to the actual infringement of the Plaintiff's alleged right and not to a subsequent judicial observation which neither created nor revived such right. To hold otherwise would permit precisely what the Hon'ble Supreme Court has cautioned against, namely, the use of clever drafting or a colourable formulation of the cause of action to circumvent the law of limitation.

62. In these circumstances, the Plaintiff cannot be permitted to contend that the cause of action first arose on 29.03.2012. The pleadings regarding the cause of action are contrary to the Plaintiff's own documentary and oral evidence and cannot be accepted in view of the earlier events and proceedings brought on record. Consequently, the present suit is liable to be dismissed as being barred by limitation.
63. The Defendants further submit that the present suit is not maintainable, as the dispute relating to the suit properties

has already been the subject matter of Special Civil Suit No. 222/1994/B and Civil Suit No. 66/2009. The Plaintiff cannot be permitted to reagitade issues concerning the same suit properties which were already the subject matter of earlier proceedings.

64. The Plaintiff has consciously suppressed the complete history of the earlier proceedings concerning the very same suit properties in its plaint, despite the same was well within its knowledge. The said facts have been admitted by PW1 during his cross-examination, reproduced hereinabove for ready reference. Such suppression is material, particularly when the present suit seeks to reopen issues which had already been the raised and litigated in the earlier proceedings.

65. The Plaintiff cannot be permitted to reopen the same dispute by merely changing the nature of the reliefs sought or by introducing allegations of fraud and collusion. Such an attempt amounts to re-agitating the very same controversy

through successive proceedings, which is impermissible in law.

66. Even otherwise, the issue of the Plaintiff's alleged title to the suit properties and the allegations of fraud and collusion cannot be effectively adjudicated in the absence of the necessary parties, more particularly those who were parties to the transactions and proceedings sought to be questioned by the Plaintiff.
67. It is a matter of record that the original plaint was instituted against nineteen Defendants, which included the predecessors-in-title of Defendant Nos. 1 and 2, as also the parties to the impugned Sale Deeds, the Agreement dated 10.12.1997, the Consent Terms and the Consent Decree passed in Special Civil Suit No. 222/1994/B. These persons were directly connected with the transactions which form the very foundation of the present suit.
68. It is pertinent to note that, despite the aforesaid, the Plaintiff itself filed an Application dated 30.03.2021 seeking deletion

of Defendant Nos. 3 to 19, which came to be allowed by this Hon'ble Court by a reasoned order. Having consciously chosen not to proceed against the said Defendants, the Plaintiff cannot now seek adjudication upon the validity of the very transactions to which those Defendants were parties.

69. While allowing the said Application dated 30.03.2021, this Hon'ble Court categorically observed that,

'Irrespective of the above submissions made by learned Advocate P. Kamat for the plaintiff, it is the plaintiff who will suffer if the present matter could not be decided in absence of the above defendants.'

The said finding clearly records that the consequence of deletion of Defendant Nos. 3 to 19 would be borne by the Plaintiff itself.

70. The aforesaid order has neither been challenged nor set aside and continues to remain in force. The Plaintiff is therefore bound by the position recorded therein and cannot now be permitted to take a contrary stand.

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71. Nonetheless, the Plaintiff, by filing another Application dated 11.08.2022 (Exhibit D-167), sought to recall the order dated 18.06.2021 and re-add Defendant Nos. 3 to 19 to the present proceedings. The said Application also came to be dismissed by this Hon'ble Court by a detailed order dated 23.08.2022, and remains unchallenged.
72. While dismissing the said application for re-adding the deleted Defendants No. 3 to 19, this Hon'ble Court had observed that it was not the case of the Plaintiff that there was any subsequent event changing the circumstances due to which the presence of the deleted Defendants is now become must or they have any role to play in the settlement or in the present proceedings.
73. Being so the case, the Plaintiff cannot now seek adjudication of its allegations of title, fraud and collusion in the absence of the very persons who were parties to the impugned transactions and proceedings. The Plaintiff, having

consciously proceeded with the suit after deletion of the said Defendants, must bear the consequences thereof.

74. It is also pertinent to note that the Plaintiff has levelled serious allegations of fraud even against its former Special Attorney, Jeronimo Manuel Monteiro, who, by his written communication, has categorically denied the allegations and stated that all his acts were carried out under the instructions of the then President, Shri Reinario Tabebu Luz De Souza. If the Plaintiff intended to seek adjudication on such allegations, the said former Special Attorney and the former President were necessary parties to the present proceedings, whose absence is fatal to the Plaintiff's case.

75. The Plaintiff has not made necessary allegations of fraud as required to be pleaded. The Hon'ble Supreme Court of India has further held in **C. S. Ramaswamy v. Nanjammal & Ors.** 2022 SCC Online SC 1330 that;

"31. Even the averments and allegations in the plaint with respect to fraud are not supported by any further averments and allegations how the

fraud has been committed/played. Mere stating in the plaint that a fraud has been played is not enough and the allegations of fraud must be specifically averred in the plaint, otherwise merely by using the word "fraud", the plaintiffs would try to get the suits within the limitation, which otherwise may be barred by limitation.

76. PW1 has made a crucial admission which goes to the root of the Plaintiff's case on limitation and also supports the plea of estoppel against the Plaintiff. PW1 has categorically admitted that,

"It is true that even in the year 2009 the comunidade had not made any claim or filed any Civil Suit in respect of suit properties."

The said admission is material, as it clearly establishes that even till the year 2009 the Plaintiff had not asserted any claim over the suit properties, and is wholly inconsistent with the Plaintiff's present case and the cause of action pleaded by it.

77. The Plaintiff has also sought a declaration declaring the Compromise Decree dated 25.01.2007 passed in Regular Civil Suit No. 06/2007/C as illegal and void ab initio, without impleading the parties to the said proceedings as Defendants in the present suit. Any declaration passed by this Hon'ble Court affecting the validity of the said Compromise Decree, in the absence of the parties thereto, would seriously prejudice their rights and cannot be granted in their absence.
78. The case of these Defendants is that the suit properties are private properties and that the title thereto traces back to Maria Conceicao Rodrigues, who acquired ownership by virtue of remission of foro upon payment of twenty years' annuities, as evidenced by the certificate issued by the Clerk of the Plaintiff and the records of the Directorate of Settlement and Land Records.
79. Upon her demise, the properties devolved upon her legal heirs, namely Francisco Aleixo das Dores Mergulhao and

Emanuel Joveaniano Paixao Mergulhao, and thereafter upon Maximo Mergulhao. Following the demise of Maximo Mergulhao, the Deed of Succession dated 04.06.1998, read with the Deed of Gratuitous Relinquishment of Illiquid Rights dated 13.05.1998, made Dionisia Dias e Mergulhao the sole owner of the suit properties, who thereafter conveyed the same to Defendant No. 1 under three registered Sale Deeds dated 25.04.2006, through whom Defendant Nos. 1(a), 1(b) and 2 derive their lawful title and possession.

80. The Plaintiff has not disputed that Maria Conceicao Rodrigues had applied for remission of the suit properties upon payment of foro for twenty years in the year 1938.
81. Being so the case, burden was on the Plaintiff to prove that the suit properties did not form part of the remission granted in favour of Maria Conceicao Rodrigues. In support of its case, the Plaintiff examined its Attorney Mr. Louis Abreau and an expert witness, namely Surveyor Mr. Prazares Gonsalves.

82. During his cross examination, the PW1 was questioned regarding the records of the Comunidade to in order to examine the credibility and the evidentiary value of the Tombasao Plantas No. 15036 and 15037 which is at exh. PW1/C-78 Colly. The PW1 was asked at page 99 of his cross examination,

"On what date were the said Plantas prepared?"

to which the witness answered,

"it was prepared in the year 1914".

83. He was further questioned,

"who was the draughtsman of Planta No. 15036 and 15037?"

to which the witness answered

"I say that there are some names inscribed at the bottom of Planta No. 15036 but the same is not readable. As far as Planta 15037 is concerned, the same according to me is prepared by one Mr. Loundo. The same was prepared during the Portuguese regime by the services of PWD, Section

of Survey Department, which is an authenticated record of Government. I admit that there is no seal of PWD.

84. Further, the PW1 has also questioned pertaining to the Tombo I book maintained by the Plaintiff, wherein he has clearly stated that at page 10 of his cross examination that,

"It is true that the very first column of book of Tombo I refers to "Name and Number of Plan pertaining to Respective Lote", "It is true that Planta numbers 15036 and 15037 are not recorded in the first column book of Tombo I.", It is true that no Planta numbers are written on the said column and the same is blank."

85. The PW1 was further questioned on the areas of both the properties, i.e. area of the property 'Saveli Gali' and 'Oros' recorded at page 11 of his cross examination

"Is it correct to say that the cumulative area of the property "Saveli Gail" is 3,45,711 sq. mts? I say that it is correct."

and was further confronted as to,

“Q: Is it correct to say that the cumulative area of various Lote numbers mentioned in Para 8 of the suit plaint add up to 1,08,724 sq. mts.? Ans: This area is correct as per the records of Comunidade in the year.1914 and not after land acquisition proceedings in the years 1965 and 1969.” and “It is true that the combined area of “Saveli Gail” and “ORAS”, i.e., 3,45,711 sq. mts + 1,08,274 sq. mts, is 4,54,435 sq. mts.”

86. Having stated that the combined area of Saveli Gali and Oros was 4,54,435 sq. mts. as per the Plaintiff's record, further clarified at page 12 that

“It is true that it is case of Comunidade that the properties, that is “Saveli Gail” and “ORAS”, together constitute the entire survey no. 89, 90, and 93.”

and further explained that,

"It is true that larger survey no. 89 has about 11 sub-divisions. Similarly, survey no. 90 has two sub-divisions, 90-1 and 90-2. It is correct that survey no. 93 has presently five sub-divisions."

87. Having said so, the witness was further confronted on the area, where he has stated that,

"It may be true that cumulative area of entire survey no. 89, 90, and 93 is 6,01,925 sq. mts."

and further confronted on such vast discrepancy by putting him question,

"Q: To the question on comparing the area mentioned by you in the suit plaint in Para 7 and 8, which adds up to 4,54,435 sq. mts., and combined areas of survey nos. 89, 90, 93 including all its sub-divisions irrespective of any land acquisition totals to 6,01,925 sq. mts., which leaves a humongous difference of 1,47,490 sq. mts. What do you wish to say?"

the witness failed to give any satisfactory answers and tried to cover up such discrepancy by answering,

“Ans: Some of the properties are amalgamated, such as Lote Reservado Number XXIV, and Lote Reservado No. XXIV are amalgamated in those survey numbers.”

88. The Defendants submits that PW1 has even failed answer the question put to him at page 29 of cross examination,

“Q: Out of various survey numbers mentioned by you which survey numbers in the present date are recorded in the name of Comunidade”

to which the witness answered,

“Ans: I am not in a position to say. I voluntarily say that merely names recorded in survey records does not entitled the Title. It is not true to suggest that my above statement is false”.

89. The above answers of PW1 clearly show that the Plaintiff itself is not in a position to identify which of the survey numbers presently stand recorded in its name, while at the

same time seeking to rely upon old records to claim ownership over the suit properties. The said admission further demonstrates that the Plaintiff has failed to establish any clear correlation between the properties referred to in its records and the present suit properties, and consequently has failed to establish its alleged title thereto.

90. The witness was further questioned, recorded at page 13 of his cross examination “

Q: In view of your earlier statement that the Tombo I records and Planta relied upon by you in the present suit were prepared in year 1914 and that starting from the year 1965 there have been several land acquisitions in the said area. Did the Comunidade of Bambolim carry out any exercise of updating the book of Tombo I or the Planta?

to which the witness answered in negative as,

“No. However, I voluntarily say that the area acquired has been mentioned in the remarks

*column in one of the documents of the
Comunidade which I cannot recall at present".*

91. The aforesaid admissions of PW1 clearly demonstrate that the records relied upon by the Plaintiff were prepared in the year 1914 and were not subsequently updated despite the land acquisition proceedings and subdivision of the larger survey numbers. The absence of Planta Nos. 15036 and 15037 from the relevant column of the Tombo I book, the absence of the PWD seal on the Plantas, and the substantial discrepancy in the areas further cast serious doubt upon the reliability of the said records for determining the present identity, extent and ownership of the suit properties.

92. The evidence of PW1, therefore, does not establish that the suit properties continued to form part of the properties of the Plaintiff after the remission made in year 1938 by Maria Concessao Rpdrigues, subsequent acquisition, subdivision and revenue proceedings.

93. On the contrary, the admissions of PW1 demonstrate that the Plaintiff's records were not updated to reflect the subsequent changes, and the Plaintiff cannot rely upon such outdated records to claim ownership over properties which, as demonstrated by the Defendants, had lawfully devolved upon and were thereafter conveyed by the title predecessors of these Defendants.
94. It is therefore evident that the Plaintiff has now sought to claim title over the very properties which had already been alienated and in respect of which the Plaintiff had acknowledged the rights of the predecessors-in-title of these Defendants. The Plaintiff is seeking to take advantage of the fact that its old records were not updated despite the subsequent acquisition, subdivision and other proceedings, and is relying upon such outdated entries to project a continuing right and ownership over the suit properties, which cannot be permitted.
95. Further, the Plaintiff has examined an expert Surveyor as PW2, who has produced a plan along with his report.

However, during his cross-examination, PW2 has made several material admissions which affect the credibility and evidentiary value of the said plan and report and consequently the conclusions sought to be drawn therefrom.

96. The PW2 witness had accepted that he is not proficient in Portugues language at page 1 of his cross examination

"I am not proficient in Portuguese language i voluntarily say that I prefer to take translations",

and further admitted at page 3 of his cross examination that plantas provided him were in Portuguese language, i.e.,

"It is true that the planta No. 15035, 15036 and 15037 are individual and distinct plans. It is true that the language employed in all of the above Plantas was Portuguese".

97. The PW2 witness has further stated at page 3 that,

"I say that it is true that there was no physical survey at site conducted by me for the purpose of this report. It is true the entire survey excercise conducted by me was on the basis of the scanned

version given to me which were worked upon my computer using software Autocad.”

98. The PW2 witness had further on confronting the plantas relied by admitted at page 6 of the deposition

“I say that it is true that there is no seal on the planta 15036 and 15037”.

99. The PW2 witness has further admitted that,

“It is true that there is mismatch between the survey boundaries of the old planta plan and new the survey plan. I say that there are minor discrepancies”

and further stated that,

“I say that it is true that in order to clarify the discrepancies between survey boundaries under the old plan and the survey boundaries under the new plan an ground survey is essential.”

and further stated at page 8 that,

"It is true that in view of mismatch between boundary lines under old and under new plan, and in order to have a conclusive proof, a ground survey is a must."

100. Even the discrepancy of area, as admitted by the PW1 hereinabove, similarly, the PW2 has also admitted saying,

"It is true that after taking into consideration area stated by me in the area statement there is still additional area which falls available under the new survey of the suit properties. I say that said area is not claimed by the comunidade."

101. Further, in conclusion, the PW2 witness has admitted at page 9 and 10 that,

"It is true that in the process of upscaling and downscaling or plans and the final product is printed there is possibility that there could been an error."

102. Considering the admissions made by the expert witness PW2 during his cross-examination, there remains no manner of doubt that the plan and report dated 23.10.2013 prepared by him cannot be relied upon and carry no evidentiary value for adjudication of the present dispute.

103. Despite there having been several acquisitions in the subject properties, the expert witness has not even incorporated the acquisition plans in his exercise. On the contrary, PW2 has admitted during his cross-examination that he was not aware as to how many acquisitions had taken place. In such circumstances, the conclusions drawn by PW2 without considering the acquisitions cannot establish the identity, extent or ownership of the suit properties.

104. The expert witness has even gone to an extent stating that the survey plans prepared by the Survey Departments were bad / faulty, while admittedly relying upon the same on the ground that everyone relies upon them. Such an approach itself demonstrates that the report is not based upon any independent or reliable exercise undertaken by PW2.

105. With respect to the exhibits PW1/C-92 Colly, the orders passed by the Ld. Mamlatdar of Goa, Panaji, in case No. CAJ/ARC/PRC/10 and 11/71 and CAJ/ARC/PRC/18/71, the PW1 witness was categorically questioned and has admitted during his cross at page 30 that,

“It is true that Gazette Sr No II 38 dated 18/12/1969 does not show survey no 93/2, 93/3 and 93/4.”

“It is true that the order dated 10/12/1971 passed in case No CAJ/ARC/PRC/10/11/71 (Parshuram Cuncolkar, Luis Rosario Sebastiao Gomes and Bicio Gomes) do not show any Lote No or cadastral No or Matriz No or Survey number or any area.”

“It is true that the order dated 20/12/1971 passed in case No CAJ/ARC/PRC/18/71 (Raiulshwar Gauns v/s Salvador B. Monteiro and Comunidade of Bambolim) do not show any Lote number or cadastral number or Matriz No or survey number or any area.”

The PW1, having admitted that the said orders contain no particulars identifying the properties, such as the survey number, matriz number, cadastral No. or area, the said orders are of no assistance to the Plaintiff in establishing its claim or identifying the suit properties.

106. It is the case of the Plaintiff that it had auctioned portions of the suit properties "Saveli Gali" and "Oros" to various persons, viz. Salvador Bartolomeu Monteiro, Teofilo J. Monteiro and Inacio Benedito Matias Monteiro, vide auction held on 03.01.1970 and that said allottees were handed over portions of the suit properties.

107. It is pertinent to mention that it is matter of record found in the Judgment and Order passed in SCS No. 128/21/A that the said allottees never cultivated the suit properties. The said record demonstrates that the said allottees were never in possession of the suit properties, whereas the Defendants and their predecessors-in-title continued to remain in undisturbed possession thereof.

108. It is further pertinent to note that, in the said Special Civil Suit No. 6/2007, the Defendants have declared in the consent terms that the names recorded of the Defendants therein had been recorded in the survey records by error, and accordingly Compromise Decree dated 25.01.2007 came to be passed.

109. The aforesaid facts, when read with the documentary evidence establishing the title of these Defendants and their predecessors-in-title, demonstrate that the title of these Defendants traces back to the grant made by the Plaintiff in favour of Alexander Rodrigues vide Certificate dated 18.03.1904. The said grant was thereafter acquired by payment of twenty annuities as provided under the Code of Comunidades, which fact is recorded in Livro Tombo 2-B dated 25.08.1938 at pages 12 and 13 (Exhibit DW2/C-163).

110. Being so, in view of the aforesaid documents forming part of the chain of title, the Plaintiff cannot now seek a declaration or to say is not entitled for a declaration that the Certificate dated 18.03.1904 issued by the Clerk of the

Plaintiff is not a title document in respect of the properties "Saveli Gali" and "Oros", or that the said Certificate did not confer any ownership upon the predecessors-in-title of these Defendants or did not constitute a grant of the properties "Oros" and "Saveli Gali".

111. The said Certificate dated 18.03.1904, when read with the remission records of the year 1938, and coupled with the subsequent survey records and the presumptions attached to such revenue and title records, clearly establishes the flow of title in favour of the predecessors-in-title of these Defendants. The title of the Defendants, therefore, is supported by a continuous chain of documentary evidence and cannot be displaced merely on the basis of the old and admittedly non-updated records relied upon by the Plaintiff.

112. The Plaintiff having failed to displace the documentary chain of title relied upon by these Defendants and further failed to establish that the suit properties were not granted or otherwise transferred to the title predecessors of these Defendants, cannot now seek a declaration that the

properties surveyed under Survey Nos. 93/2, 93/3 and 93/4 of Village Bambolim continued to form part of the properties "Saveli Gali" and "Oros" belonging to the Plaintiff and were never granted or transferred to late Alexander Rodrigues, Maria Conceicao Rodrigues or any other person.

113. Consequently, the Plaintiff is also not entitled to a declaration that the inclusion of the name of Defendant No. 1 in the Form I & XIV of the suit properties is illegal, or to a direction for deletion of the name of Defendant No. 1 and inclusion of the Plaintiff's name as owner/occupant thereof, or to a declaration that Defendant Nos. 1 to 5 have no right, title or interest in the suit properties.

114. The Plaintiffs have failed to identify the which portion of the property were allotted to these allottees or that possession of any portion of the suit properties was ever handed over to them. In any event, the Plaintiff has failed to establish by cogent evidence the identity of the portions allegedly allotted and their correlation with the present suit properties.

115. These Defendants submit that they, and prior thereto their predecessors-in-title, have been in exclusive, lawful and uninterrupted possession of the suit properties, subject only to the portions thereof acquired by the Government under the land acquisition proceedings.

116. Further, in Regular Civil Suit No. 6/2007/C, the Defendants therein categorically admitted that the names recorded in the tenants' column of the suit properties had been erroneously entered and expressed no objection to the deletion of the said names from the survey records. The said admission culminated in the Compromise Decree dated 25.01.2007.

117. The said admission further supports the case of these Defendants that the entries in the survey records in favour of the said persons were erroneous and that the said persons had no right or possession over the suit properties. The same is also consistent with the case of these Defendants that they and, prior thereto, their title predecessors, continued to remain in possession of the suit properties.

118. These Defendants further submit that, as regards the jurisdiction of the Civil Court to pass the said Compromise Decree, the law as then prevailing was clear. The Hon'ble High Court of Bombay, in *Dattaram A. Arolkar v. The Mamlatdar of Mormugao & Ors. AIR 2001 BOM 74*, had held that "...Therefore, a landlord who contends that a person is not his tenant would be contending that such a person is either a trespasser or has some other right. The issue to be decided in such a case is the other legal status, if any. The issue will not be whether a person is not a tenant. Such other legal issue can be decided by the Civil Court as its jurisdiction is not ousted. Such an issue is not also an issue to be decided exclusively by the Mamlatdar. Merely calling the relief as a negative declaration will not suffice. Jurisdiction of the Civil Court in such matters will not be ousted. If section 58(2) does not bar or oust this jurisdiction, then a civil suit would be maintainable."

119. The said position was thereafter considered by Hon'ble Supreme Court of India in the matter of *Smt. Madhumati*

Atchut Parab v. Shri.Rajaram V. Parab & Ors. Civil Appeal No. 2971 of 2001 by its Order dated 29.01.2009. In view thereof, the Compromise Decree dated 25.01.2007 passed by the learned Civil Judge, Junior Division, in Regular Civil Suit No. 06/2007/C cannot be said to be without jurisdiction merely on the ground that the issue was allegedly within the exclusive jurisdiction of the Mamlatdar, as now contended by the Plaintiff.

120. Further, with respect to the title of these Defendants to the suit properties, it is not disputed by the Plaintiff that Maria Conceicao Rodrigues was granted properties upon payment of twenty annuities and that there was a remission in her favour. The case of the Plaintiff is only that the suit properties were not part of the properties so granted to Maria Conceicao Rodrigues and that the properties granted to her were different from the suit properties.

121. Being so the case of the Plaintiff, and considering that the Defendants trace their title to the said grant by the Comunidade upon payment of the requisite twenty

annuities as contemplated under the Code of Comunidades, it was incumbent upon the Plaintiff to establish which properties were in fact granted to Maria Conceicao Rodrigues, particularly in view of the Order dated 15.01.1982 passed by the Ld. ISLR, being the authority concerned with the survey and identification of the properties, which Order has till date neither been challenged nor set aside.

122. The Defendants submit that the survey records of the suit properties record the name of deceased Defendant No. 1, who derives title from Maximo Mergulhao. Prior to the inclusion of the name of Defendant No. 1, the name of Maximo Mergulhao was duly recorded in the said survey records and was also recorded in Form III so also in the manual Form I & XIV relied by the Defendants at Exh DW1/C-146 Colly, pursuant to a detailed enquiry conducted by the Ld. ISLR, whereby the name of Maximo Mergulhao came to be ordered to be recorded vide Order dated 15.01.1982.

123. In view of the survey records and the presumption provided under Section 105 of the Goa Land Revenue Code, the initial burden of establishing that the entries in the survey records are incorrect lies upon the Plaintiff. The Plaintiff has failed to discharge the said burden or to establish that the said entries were wrongly made.

124. The Defendants submit that they had bona fide purchased the suit properties for valuable consideration under duly registered Sale Deeds dated 25.04.2006, after verifying the revenue records, title documents and other public records then available, as also the Consent Decree dated 21.11.1998. There was, therefore, no reason for the Defendants to doubt the title of their vendors or to believe that the Plaintiff had any right in the suit properties, except in respect of the 40 plots agreed to be allotted to the Plaintiff under the Agreement dated 10.12.1997.

125. The Consent Decree dated 21.11.1998 itself records that the parties had voluntarily arrived at the settlement and had

accordingly filed the Consent Terms before the competent Court. The said Consent Decree continued to remain valid and operative on the date of execution of the Sale Deeds dated 25.04.2006 and had not been challenged or set aside at the relevant time. Further, the Plaintiff has also failed to prove fraud as alleged.

126. The Defendants were, therefore, fully justified in placing reliance upon the said Consent Decree while acquiring the suit properties. At the time of purchase, the title of the vendors was duly reflected in the revenue records and there existed no subsisting order, decree or proceeding declaring that the vendors had no right, title or interest in the suit properties.

127. The Defendants have, thereafter, continued in lawful possession of the suit properties and have altered their position on the strength of the title so acquired. The rights lawfully acquired by the Defendants under registered conveyances cannot now be defeated by the belated and unsubstantiated claims of the Plaintiff.

128. The Plaintiff has failed to establish its title to the suit properties or to disprove the title of these Defendants. Consequently, the Plaintiff is not entitled to any of the reliefs sought, including the relief of permanent injunction restraining these Defendants from enjoying, developing or otherwise dealing with their properties, or the relief seeking handing over of possession of the suit properties to the Plaintiff.

129. The Defendants therefore most humbly prays that the present suit be dismissed with costs.

Place: Mercas, Goa.

Date: 11.08.2026

Advocate for the Defendants

No. 1(a), (b) & 2